

GZ: 2021-0.301.680 dated August 5, 2021 (Case Number: DSB-D124.3750)

[Note from the editor: Names and companies, legal forms and product designations, addresses (including URLs, IP and email addresses), file numbers (and the like), etc., as well as their initials and abbreviations may have been abbreviated and/or altered for pseudonymization reasons. Obvious spelling, grammar, and punctuation errors have been corrected.]

DECISION

RULING

The Data Protection Authority decides on the data protection complaint of the minor Kevin A*** (complainant), represented by Mag. Rupert A***, dated March 3, 2021, against the District Authority V*** (respondent) regarding the violation of the right to confidentiality as follows:

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The complaint is dismissed as unfounded.

Legal bases: Art. 51 para. 1, Art. 57 para. 1 lit. f, and Art. 77 para. 1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter: GDPR), OJ No. L 119 of May 4, 2016, p. 1; §§ 1, 18 para. 1, as well as 24 para. 1 and para. 5 of the Data Protection Act (DSG), Federal Law Gazette I No. 165/1999 as amended; § 5 of the Epidemics Act 1950 (EpiG), Federal Law Gazette No. 186/1950 as amended.

REASONING

A. Submissions of the Parties and Procedural History

1. In an introductory submission dated March 3, 2021, and a clarification dated March 23, 2021, the minor complainant, represented by his custodial father, summarized that there had reportedly been some positive Covid cases or suspected cases at the V*** Commercial Academy. The V*** Commercial Academy had informed the parents that the respondent would contact the students regarding a Covid test. The respondent had requested the V*** Commercial Academy to provide the data of all students by no later than March 2, 2021, and this request had been complied with, affecting the complainant as a student. This data had been entered into the epidemiological reporting system without necessity and had been sent via SMS by the D*** control center on March 3, 2021, inviting the registered individual to a PCR test. The request, transmission, and use of the data by the authorities had occurred without a legal basis; the complainant was neither infected, ill, suspected of being contagious, nor a contact person, and there was a violation of the right to confidentiality.

2. In a statement dated April 21, 2021, the respondent summarized that starting from February 24, 2021, there had been an increase in SARS-CoV-2 positive laboratory findings among teachers and students of the V*** Commercial Academy, and these cases had been reported to the respondent as the health authority in accordance with § 2 EpiG. Between February 24 and 28, 2021, six positive laboratory findings had been received, and on March 2, 2021, four more had been received, affecting various school classes and floors, making the source or origin untraceable. Instead of the also considered school closure, the respondent, as the health authority, had offered voluntary PCR testing to the remaining students, teachers, and administrative staff in addition to the directly identified contact persons (Category 1 and Category 2). For this purpose, the data—specifically first and last name, date of birth, address, and mobile phone number—had been transmitted. However, this data had not been entered into the register of notifiable diseases pursuant to § 4 of the Epidemics Act (epidemiological reporting system – EPS) or into another file management system, but directly into the web tool operated by the 1450 health consultation (Office of the D*** State Government/D*** Control Center) for the organizational handling of SARS-CoV-2 testing by 1450. The respondent's access had ended with the submission, and the individuals had received an SMS notification regarding the date and location for voluntary SARS-CoV-2 testing.

The offer of voluntary testing was based by the respondent on the obligations contained in § 5 para. 1 EpiG. In these surveys, the offer of voluntary testing to the remaining students, etc., had been necessary to potentially identify the source of the infection and, if necessary, to take further measures to prevent and combat notifiable diseases in accordance with §§ 6 et seq. EpiG. The data processing concerning the complainant had therefore been lawful; there was an obligation of the school to provide information about suspected cases and infections according to Art. 9 para. 2 lit. i GDPR in conjunction

with § 5 para. 3 EpiG to the respondent as the health authority. In the event of a suspicion of Covid-19, the school was required to inform the respondent and to assist in the identification and classification of contact persons.

It is noted that the alleged storage of the complainant's personal data in the EMS had not taken place. The initiation had been based on Art. 9 para. 2 lit. i GDPR in conjunction with § 10 DSG in conjunction with § 5 EpiG and was necessary for combating the spread of the coronavirus for reasons of public interest in the field of public health. The web tool of the telephone health consultation 1450 served to organize the testing, which was voluntary and to be understood as assistance to the directly affected individuals.

Also, according to the

****Possibility of Judgment on the Legality of Data Processing****

1. The possibility of judgment indicates that the processing of such data is lawful: If it is conceivable that the data collected by the competent authority is suitable in terms of type and content for determining the relevant facts, the legality of the investigation from a data protection perspective is given.

2. In the statement of the complainant, represented by his custodial father, dated April 23, 2021, it was summarized that it should be added that the data transfer occurred at the request of the respondent. The fact that the data was not entered into the EMS is not immediately apparent to an uninformed observer; however, this may indeed be the case. Accordingly, the complaint in question is amended to the effect that the request for the complainant's data and the entry of this data into the web tool for the organizational handling of tests constituted a violation of data protection. The respondent presents the situation as if the data request in question was unavoidable. However, the individuals involved were neither sick, suspected of being sick, nor contagious, and thus did not fall into categories 1 or 2. The complainant does not understand how the respondent could determine the source of an infection event. No necessity is apparent; particularly since it involved voluntary testing. The clarification in this case was not warranted by any suspicion and was not necessary to combat the spread of the coronavirus. The cited case law also does not justify the actions of the respondent; the complainant appeared merely as a healthy individual, and the processing was not permissible. A simple notification regarding the testing would have been sufficient.

****B. Subject of the Complaint****

Based on the submissions of the complainant, the subject of the complaint is the question of whether the respondent violated the complainant's right to confidentiality by collecting the complainant's data at the V*** Commercial Academy and subsequently entering it into the web tool for the organizational handling of SARS-CoV-2 testing.

****C. Findings of Fact****

The complainant is a student at the V*** Commercial Academy. At this school, there were increased confirmed positive cases of SARS-CoV-2 starting from February 24, 2021, affecting various classes and floors, making the source untraceable. The respondent requested the names, birth dates, addresses, and mobile phone numbers of all students, teachers, and administrative staff from the V*** Commercial Academy – including that of the complainant. This data was subsequently entered by the respondent into the web tool for the organizational handling of SARS-CoV-2 testing by 1450 - Health Advisory in the Office of the D*** Provincial Government/Control Center D***. The complainant subsequently received an SMS on March 3, 2021, offering him the opportunity to participate in a voluntary PCR test for SARS-CoV-2. The complainant was not classified as a contact person to an infected or positively tested individual in connection with the positive SARS-CoV-2 cases.

****Assessment of Evidence:**** The findings are based on the consistent submissions of the parties involved in the proceedings.

****D. Legal Considerations****

1. ****Applicable Legal Basis****

1. § 1 Abs. 1 DSG states that everyone, particularly with regard to the respect for their private and family life, has the right to confidentiality of their personal data, provided there is a legitimate interest in doing so. According to § 1 Abs. 2 DSG, a limitation of the right to confidentiality can occur in the vital interest of the affected person or with their consent, otherwise only to protect overriding legitimate interests of another, and in the case of interventions by a state authority only based on laws that are necessary for the reasons stated in Art. 8 Abs. 2 EMRK.

2. The respondent is a district administrative authority and is responsible for the enforcement of § 5 EpiG – thus a public task. In this respect, as previously stated, only a qualified legal basis can be considered as a permissible condition.

In this case, the applicability of § 1 Abs. 1 DSG is established, as the information according to Art. 4 Z 1 DSGVO relates to the complainant. The GDPR and, in particular, the principles enshrined therein must be taken into account when interpreting the right to confidentiality (cf. the decision of the DSB dated October 31, 2018, GZ DSB D123.076/0003-DSB/2018).

3. The respondent states that the data processing in question is based on the obligation contained in § 5 Abs. 1 EpiG.

This view cannot be contested.

The wording of § 5 Abs. 1 EpiG does not, unlike the wording of § 5c Abs. 1, depend on whether a person suspected of illness has direct contact with a sick person or not. Rather, the wording refers to sick individuals, those suspected of illness, or contagious individuals.

Infectious suspects. As long as the source of a disease has not been determined, it is also not possible to accurately establish who had contact with whom and thus may be considered a transmitter.

However, the procedure according to § 5 EpiG serves to identify the source or demonstrably sick individuals.

§ 5 Abs. 1 EpiG grants the authority a wide discretion. It cannot be said that the respondent exceeded this discretion in processing the complainant's data: In the complainant's school, there was a demonstrable outbreak of COVID-19, which affected different classes and floors, and the source could not be identified. In light of this, it cannot be deemed disproportionate to invite all relevant students for a PCR test, as well as to identify infectious suspects and isolate the sick, in order to prevent further spread of COVID-19.

The complaint was therefore to be dismissed as stated.